

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2896 of 2019

Applicant :- Vikram Agrawal

Opposite Party :- Ajay Kumar, Executive Engineer And Another

Counsel for Applicant :- Ranjit Saxena

Hon'ble Mahesh Chandra Tripathi,J.

Before proceeding in the contempt, let Shri Chandan Agrawal, who is authorised to take notice on behalf of opposite party, may seek the instruction in the matter.

Let a copy of the contempt application be handed over to Shri Chandan Agrawal, during course of the day.

Put up this matter on 16.05.2019 as fresh showing the name of Shri Chandan Agrawal, Advocate from the side of opposite party.

Order Date :- 10.5.2019

A. Pandey

Court No. - 10

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Opposite Party :- Ajay Kumar, Executive Engineer And Another

Counsel for Applicant :- Ranjit Saxena

Counsel for Opposite Party :- Chandan Agarwal

Hon'ble Mahesh Chandra Tripathi,J.

Shri Ranjit Saxena, learned counsel appearing for the applicant states that in compliance of the order dated 18.5.2018 passed by a Division Bench of this Court in Writ C No.21562 of 2017 filed by the applicant, the indemnity bond has been furnished for restoration of fresh electricity connection.

On the request of Shri Chandan Agarwal, learned counsel appearing for the opposite parties, put up this matter as fresh on 21.5.2019.

Order Date :- 16.5.2019

RKP

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 2896 of 2019

Applicant :- Vikram Agrawal

Opposite Party :- Ajay Kumar, Executive Engineer And Another

Counsel for Applicant :- Ranjit Saxena

Counsel for Opposite Party :- Chandan Agarwal

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the parties.

The applicant is before this Court against the wilful defiance of the order dated 17.5.2017 and 18.5.2018 passed in Writ Petition No.21562 of 2017 (Sri Vikrm Agrawal v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.). The orders dated 17.5.2017 and 18.5.2018 are quoted as under:-

"17.05.2018

Heard Sri Ranjit Saxena, learned counsel for the petitioner and Sri A.K. Singhal holding brief for Sri Chandan Agarwal, learned counsel for the respondent Nos. 1, 2 and 3.

This petition has been preferred seeking a direction commanding the respondents to provide a new and permanent electricity connection to the petitioner. The respondents have turned down the request of the petitioner on the ground that he has failed to establish his title or ownership over the premises in question. The respondents also take the stand that during the pendency of a civil dispute the application of the petitioner cannot be considered.

Sri Ranjit Saxena contended that the respondents have proceeded to reject the claim of the petitioner solely on the ground that there exists a dispute between the petitioner and his father. He submits that irrespective of the said dispute, the respondents cannot deny an application for grant of fresh connection, in case the petitioner was to comply with all requirements as placed by the U.P. Electricity Supply Code 2005.

Sri A.K. Singhal, learned counsel who has appeared for the contesting respondents, has drawn our attention to the provision of Clause 4.4 of the Electricity Supply Code, 2005 as well as the Annexure 4.2 thereof which envisages the submission of an indemnity bond in such a situation. He therefore submits that in case the petitioner were to submit an indemnity bond in accordance with the format as prescribed by Annexure 4.2, his application shall be considered fresh.

Sri Saxena submits that the petitioner would comply with the provisions of the 2005 Code and approach the respondents alongwith the indemnity bond as contemplated therein.

We accordingly dispose of this writ petition with the following directions:

(a) It shall be open to the petitioner to apply a fresh for grant of an electricity connection alongwith a duly executed indemnity bond as contemplated by Annexure 4.2 of the U.P. Electricity Supply Code 2005.

(b) In case such an application is made within two weeks from today, the second and third respondents shall have the same duly scrutinized and pass appropriate orders thereon.

(c) In view of the above directions, the order dated 6 April 2017 renders ineffective."

"18.05.2018

Order on C.M. Application for Extension of Time No. 302417 of 2017

Heard Sri Ranjit Saxena, learned counsel for the applicant.

We find that the reasons given in support of the prayer for extension of time are justifiable and merit acceptance.

Accordingly we extend the period of compliance with the directions issued in the order dated 17 May 2017 by a further period of four weeks.

The application is disposed of accordingly."

Learned counsel for the opposite parties on the basis of instructions submits that at no point of time the applicant has executed indemnity bond as has been contemplated by Annexure 4.2 of the U.P. Electricity Supply Code, 2005. Present contempt application has been preferred appending format of indemnity bond at page 47 of the paper book but at no point of time the same has been executed and furnished before the opposite parties and as such the electricity connection in response to the writ Court order could not be restored.

Confronted with this, Shri Ranjit Saxena, learned counsel for the applicant on the basis of instructions makes a statement at Bar that within three days the indemnity bond would be executed and furnished in consonance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. In case the applicant complies the writ Court order as has been undertaken before this Court, this Court hope and trust that the opposite parties would ensure connection to the applicant forthwith. It is made clear that the Court has not expressed any opinion on the merits of the matter.

The contempt application stands **disposed of** accordingly. Notices, if any, stand discharged.

Order Date :- 21.5.2019

SP/